

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1581

By: Lawson

AS INTRODUCED

An Act relating to children; amending 10A O.S. 2021, Sections 1-9-102, 1-9-103a, 1-9-103b, 1-9-104, 1-9-104a, and 1-9-104b, which relates to the Oklahoma Children's Code; removing certain entity and inserting new entity in its place; directing certain entity to work in partnership with certain council; removing language that allows certain team to enter into certain agreement; directing certain teams and centers to establish annual membership; directing certain teams and centers to remain in good standing; directing Oklahoma Human Services to work in partnership with certain entity; modifying terms relating to the Child Abuse Multidisciplinary Team Account; removing requirement to provide monthly documentation; removing requirement to issue report; authorizing certain entity to administer certain funds; authorizing certain entity to contract with providers; modifying who may promulgate rules; creating the Oklahoma Multidisciplinary Team Council; providing for membership; providing requirements for membership; providing duties of Council; repealing 10A O.S. 2021, Sections 1-9-103a and 1-9-103b, which relate to the Child Abuse Multidisciplinary Team Account Fund; repealing 63 O.S. 2021, Section 1-227.9, which relates to the Child Abuse Training and Coordination Council; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-9-102, is amended to read as follows:

Section 1-9-102. A. 1. ~~In coordination with the Oklahoma Commission on Children and Youth, each~~ Each district attorney shall develop a child abuse multidisciplinary ~~child abuse~~ team in each county of the district attorney or in a contiguous group of counties.

2. The lead agency for the team shall be a certified child advocacy center or another qualified agency chosen by the ~~members of the team~~ district attorney with input and consent from the child abuse multidisciplinary team members. The team shall review, provide input, and intervene in reports involving child sexual abuse or child physical abuse or neglect.

B. The child abuse multidisciplinary ~~child abuse~~ team members shall include, but not be limited to:

1. Mental health professionals licensed pursuant to the laws of this state or licensed professional counselors;

2. Police officers or other law enforcement agents with a role in, or experience or training in child abuse and neglect investigation;

3. Medical personnel with experience in child abuse and neglect identification;

4. Child protective services workers within the Department of Human Services;

1 5. ~~Multidisciplinary child abuse~~ Child abuse multidisciplinary
2 team coordinators, or Child Advocacy Center personnel; and

3 6. The district attorney or assistant district attorney.

4 C. 1. ~~To the extent that resources are available to each of~~
5 ~~the various multidisciplinary child abuse teams throughout the~~
6 ~~state, the~~ The functions of the team shall include, but not be
7 limited to, the following specific functions:

8 a. ~~whenever feasible,~~ law enforcement and child welfare
9 staff shall conduct joint investigations ~~in an effort~~
10 ~~to effectively respond to child abuse reports into~~
11 reports of child sexual and physical abuse or neglect,

12 b. develop or adopt a written protocol for investigating
13 child sexual abuse and child physical abuse or neglect
14 cases ~~and for interviewing child victims. The purpose~~
15 ~~of the protocol shall be~~ to ensure coordination and
16 cooperation between all agencies involved so as to
17 increase the efficiency in handling such cases and to
18 minimize the stress created for the allegedly abused
19 child by the legal and investigatory process. In
20 addition, each team shall develop confidentiality
21 statements and interagency agreements signed by member
22 agencies that specify the cooperative effort of the
23 member agencies to the team,

- 1 c. ~~increase communication and collaboration among the~~
2 ~~professionals responsible for the reporting,~~
3 ~~investigation, prosecution and treatment of child~~
4 ~~abuse and neglect cases,~~
- 5 d. ~~eliminate duplicative efforts in the investigation and~~
6 ~~the prosecution of child abuse and neglect cases,~~
- 7 e. ~~identify gaps in service or all untapped resources~~
8 ~~within the community to improve the delivery of~~
9 ~~services to the victim and family~~ develop or adopt a
10 written protocol for interviewing children involved in
11 investigation and the use of child advocacy centers
12 for forensic interviews,
- 13 d. develop or adopt confidentiality statements and
14 interagency agreements signed by member agencies that
15 specify the cooperative effort of the member agencies
16 to the team,
- 17 f. ~~e. encourage the development of~~ develop expertise
18 through training. Each team member and those
19 conducting child abuse investigations and interviews
20 of child abuse victims shall be trained in the
21 multidisciplinary team approach, conducting legally
22 sound and age-appropriate interviews, effective
23 investigation techniques and joint investigations as
24 provided through ~~the State Department of Health, the~~

~~Commission on Children and Youth~~ a nationally
accredited association of Children's Advocacy Centers,
or other resources as approved by the Child Abuse
Multidisciplinary Team Council, and
g. ~~f. formalize a~~ adopt a standardized case review process
and ~~provide data as requested to the Commission for~~
~~freestanding teams, and~~
h. ~~standardize investigative procedures for the handling~~
~~of child abuse and neglect cases.~~

2. All investigations of child sexual abuse and child physical abuse or neglect and interviews of child abuse or neglect victims shall be carried out by appropriate personnel using the protocols and procedures specified in this section.

~~3. If trained personnel are not available in a timely fashion and, in the judgment of a law enforcement officer or the Department of Human Services, there is reasonable cause to believe a delay in investigation or interview of the child victim could place the child in jeopardy of harm or threatened harm to a child's health or welfare, the investigation may proceed without full participation of all personnel. This authority applies only for as long as reasonable danger to the child exists. A reasonable effort to find and provide a trained investigator or interviewer shall be made.~~

~~4. Freestanding multidisciplinary child~~ Child abuse multidisciplinary teams shall be ~~approved~~ reviewed by ~~the Commission~~

1 an entity identified as a nationally accredited association of
2 Children's Advocacy Centers in partnership with the Child Abuse
3 Multidisciplinary Team Council. ~~The Commission shall conduct an~~ An
4 annual review of ~~freestanding~~ child abuse multidisciplinary teams
5 shall be conducted to ensure that the teams are functioning
6 effectively. Teams not meeting the minimal standards as promulgated
7 by ~~the Commission~~ the Child Abuse Multidisciplinary Team Council
8 shall be removed from the list of functioning teams in the state.

9 D. ~~1. A multidisciplinary child abuse team may enter into an~~
10 ~~agreement with the Child Death Review Board within the Oklahoma~~
11 ~~Commission on Children and Youth and, in accordance with rules~~
12 ~~promulgated by the Oklahoma Commission on Children and Youth,~~
13 ~~conduct case reviews of deaths and near deaths of children within~~
14 ~~the geographical area of that multidisciplinary child abuse team.~~

15 ~~2.~~ Any child abuse multidisciplinary ~~child abuse~~ team reviewing
16 deaths and near deaths of children shall prepare and make available
17 to the public, on an annual basis, a report containing a summary of
18 the activities of the team relating to the review of the deaths and
19 near deaths of children and a summary of the extent to which the
20 state child protection system is coordinating with foster care and
21 adoption programs and whether the state is efficiently discharging
22 its child protection responsibilities. The report shall be
23 completed no later than December 31 of each year.

1 E. Nothing in this section shall preclude the use of hospital
2 team reviews for client-specific purposes and multidisciplinary
3 teams, either of which were in existence prior to July 1, 1995;
4 provided, however, such teams shall not be subject to the provisions
5 of paragraph 1 of subsection A of this section.

6 F. ~~1.~~ Child advocacy centers shall be classified, based on the
7 ~~child population of a district attorney's district, as follows:~~

8 ~~a. nonurban centers in districts with child populations~~
9 ~~that are less than sixty thousand (60,000),~~

10 ~~b. midlevel nonurban centers in districts with child~~
11 ~~populations equal to or greater than sixty thousand~~
12 ~~(60,000), but not including Oklahoma and Tulsa~~
13 ~~Counties, and~~

14 ~~c. urban centers in Oklahoma and Tulsa Counties.~~

15 ~~2. The multidisciplinary child abuse team used by the child~~
16 ~~advocacy center for its accreditation shall meet the criteria~~
17 ~~required by a national association of child advocacy centers and, in~~
18 ~~addition, the team shall:~~

19 ~~a. choose a lead agency for the team,~~

20 ~~b. intervene in reports involving child sexual abuse and~~
21 ~~may intervene in child physical abuse or neglect,~~

22 ~~c. promote the joint investigation of child abuse reports~~
23 ~~between law enforcement and child welfare staff, and~~

1 ~~d. formalize standardized investigative procedures for~~
2 ~~the handling of child abuse and neglect cases~~ national
3 accreditation status.

4 G. ~~Multidisciplinary child abuse~~ Child abuse multidisciplinary
5 teams and child advocacy centers shall have full access to any
6 service or treatment plan and any personal data known to the
7 Department which is directly related to the implementation of this
8 section.

9 H. Each member of the team shall be responsible for protecting
10 the confidentiality of the child and any information made available
11 to such person as a member of the team. The child abuse
12 multidisciplinary team and any information received by the team
13 shall be exempt from the requirements of Sections 301 through 314 of
14 Title 25 of the Oklahoma Statutes and Sections 24A.1 through 24A.31
15 of Title 51 of the Oklahoma Statutes.

16 ~~I. All freestanding child abuse teams and child advocacy~~
17 ~~centers shall establish annual membership with Children's Advocacy~~
18 ~~Centers of Oklahoma, Inc., and remain members in good standing.~~

19 SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-9-104, is
20 amended to read as follows:

21 Section 1-9-104. A. The Department of Human Services shall
22 allocate monies available in the Child Abuse Multidisciplinary
23 Account (CAMA) to:

1 1. ~~The Child Abuse Multidisciplinary Team Account (CAMTA) Fund~~
2 ~~created by Section 1-9-103a of this title. Monies made available to~~
3 ~~the CAMTA shall be used for the purposes of funding one~~ One
4 ~~functioning freestanding~~ child abuse multidisciplinary ~~child abuse~~
5 team in each county of this state, utilizing the funding
6 distributions as provided in subsection B of this section;

7 2. One hospital team pursuant to subsection E of Section 1-9-
8 102 of this title; and

9 3. One child advocacy center, accredited by the National
10 Children's Alliance, per district attorney's district. A child
11 advocacy center shall:

12 a. be eligible for Child Abuse Multidisciplinary Account
13 (CAMA) funding upon accreditation by the National
14 Children's Alliance,

15 b. secure a third-year interim review to determine
16 whether the child advocacy center continues to meet
17 the National Children's Alliance standards in effect
18 at the time of its last accreditation. If a child
19 advocacy center fails the third-year review, the
20 center shall remain eligible for CAMA funding, but
21 shall have another review conducted in the fourth
22 year. If the child advocacy center fails the fourth-
23 year review, the center shall be ineligible to receive
24 CAMA funding until such time as the center receives

1 reaccreditation from the National Children's Alliance,
2 and

3 c. remain the center for the district attorney's district
4 as long as the center is accredited and eligibility is
5 maintained pursuant to the provisions of Section 1-9-
6 102 of this title. If a center does not remain
7 eligible pursuant to the provisions of Section 1-9-102
8 of this title, endorsement by the district attorney as
9 the child advocacy center for the district may be
10 sought by any entity beginning with the calendar year
11 after the center is determined to be ineligible. The
12 two centers in district number (4) and district number
13 (13) that were accredited as of May 17, 2005, shall
14 continue to receive funding at the nonurban level.
15 Should one of the exempted centers close or no longer
16 meet the criteria for a child advocacy center pursuant
17 to the provisions of Section 1-9-102 of this title,
18 the center shall not be allowed to reopen in that
19 district or to receive CAMA funds. The remaining
20 center shall become the sole child advocacy center for
21 the district attorney's district.

22 B. Funding distribution pursuant to the provisions of this
23 section shall be determined:

1 1. By multiplying the number of applicants in each category by
2 the corresponding weight as follows:

- 3 a. ~~freestanding~~ functioning child abuse multidisciplinary
4 ~~child abuse~~ team accredited by Children's Advocacy
5 Centers - 1,
6 b. hospital team - 1,
7 c. nonurban centers - 4,
8 d. mid-level nonurban centers - 6, and
9 e. urban centers - 24;

10 2. Adding together the weighted results for all categories;

11 3. Dividing the weighted result for each category by the sum of
12 the weighted results for all categories; and

13 4. Equally distributing funding to each applicant in the
14 corresponding category based on the amounts obtained by multiplying
15 the total available funding by the calculated percentages. The
16 total amount for all freestanding multidisciplinary teams as
17 determined by the formula provided in this subsection shall be
18 transferred to the Child Abuse Multidisciplinary ~~Team~~ Account
19 ~~(CAMTA)~~ (CAMA) Fund established by Section ~~1-9-103a~~ 1-9-103 of this
20 title and contracts with each freestanding multidisciplinary team
21 shall be completed no later than January 1 of each year.

22 ~~During state fiscal year 2019, the Oklahoma Commission on Children~~
23 ~~and Youth may disburse to each freestanding multidisciplinary team~~
24 ~~the remaining contracted amount of the freestanding~~

1 ~~multidisciplinary team award. The freestanding multidisciplinary~~
2 ~~team shall provide the Commission with monthly documentation of~~
3 ~~expenses as well as activity data and continue providing such~~
4 ~~documentation thereafter. Beginning January 1, 2020, and each year~~
5 ~~thereafter, the Commission may~~ Oklahoma Human Services in
6 partnership with a designated entity shall disburse the contracted
7 amount at the beginning of the calendar year to ~~freestanding~~ child
8 abuse multidisciplinary teams that are functioning effectively as
9 determined by the ~~Commission~~ Child Abuse Multidisciplinary Team
10 Council, pursuant to Section 1-9-102 of this title.

11 C. By January 31, ~~2003~~ 2026, and by January 31 of each year
12 thereafter, the Department shall disburse monies from the Child
13 Abuse Multidisciplinary Account to a designated entity for
14 distribution to eligible child advocacy centers. A child advocacy
15 center shall be in compliance with the provisions of Section 1-9-102
16 of this title to be eligible for Child Abuse Multidisciplinary
17 Account funding. The disbursement shall be a single, annual
18 disbursement, for the collection period of the preceding year
19 beginning October 1 through September 30.

20 D. ~~A report issued by the Oklahoma Commission on Children and~~
21 ~~Youth to the Oklahoma Legislature outlining performance measures for~~
22 ~~all multidisciplinary teams, including those associated with child~~
23 ~~advocacy centers, and recommendations on the funding formula~~
24 ~~provided for in this section shall be transmitted to the Oklahoma~~

1 ~~Legislature no later than December 31, 2017. The Department, the~~
2 ~~Commission, and the Children's Advocacy Centers of Oklahoma, Inc.,~~
3 ~~shall meet annually to review and certify the amount of CAMA and~~
4 ~~CAMTA funds to be disbursed.~~

5 ~~E.~~ A child advocacy center may carry over funding for a period
6 of one (1) year after allocation, such one-year period to begin in
7 January and end in December of the same year; provided, however,
8 funds not used within twenty-four (24) months of the original
9 allocation will be deducted from the contract amount for the next
10 contract year. If a center is ineligible for funding in an upcoming
11 year, unused funds from the current or previous years shall be
12 returned to the CAMA Fund for use in subsequent years. Funds not
13 used by a ~~freestanding~~ child abuse multidisciplinary team by the end
14 of the contract period shall revert to, and be deposited in, the
15 CAMA Fund.

16 ~~F. E.~~ ~~The Commission is hereby authorized to receive five~~
17 ~~percent (5.0%) in administrative costs from the CAMTA Fund. The~~
18 Department of Human Services is hereby authorized to receive one-
19 half of one percent (0.5%) in administrative costs from the CAMA
20 fund. In partnership with the Department, an eligible entity
21 identified as a nationally accredited association of Children's
22 Advocacy Centers is hereby authorized to administer the CAMA fund.

23 SECTION 3. AMENDATORY 10A O.S. 2021, Section 1-9-104a,
24 is amended to read as follows:

1 Section 1-9-104a. ~~The Oklahoma Commission on Children and Youth~~
2 ~~shall~~ Department is hereby authorized to contract with a qualifying
3 entity to administer CAMA funds and an entity identified as the
4 nationally accredited association of Children's Advocacy Centers is
5 authorized to contract with eligible providers as authorized by this
6 act.

7 SECTION 4. AMENDATORY 10A O.S. 2021, Section 1-9-104b,
8 is amended to read as follows:

9 Section 1-9-104b. ~~The Oklahoma Commission on Children and Youth~~
10 ~~and the Department of Human Services~~ Child Abuse Multidisciplinary
11 Team Council shall promulgate rules to implement the provisions of
12 this act.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1-9-102a of Title 10A, unless
15 there is created a duplication in numbering, reads as follows:

16 A. There is hereby created the Child Abuse Multidisciplinary
17 Team Council.

18 B. The Oklahoma District Attorneys Council shall appoint the
19 Child Abuse Multidisciplinary Team Council which shall be composed
20 of eight (8) members, as follows:

21 1. One member shall be a representative of Oklahoma Human
22 Services;

23 2. One member shall be a representative of the District
24 Attorneys Council;

1 3. One member shall be a representative of the Council on Law
2 Enforcement Education and Training (CLEET);

3 4. One member shall be a representative of a nationally
4 accredited association of Children's Advocacy Centers;

5 5. One member shall be a representative of a statewide medical
6 association and shall be a member of a state chapter of a national
7 academy of pediatrics;

8 6. One member shall be a representative of an Indian child
9 welfare association;

10 7. One member shall be a representative of an advisory task
11 force on child abuse and neglect; and

12 8. One member shall be a representative of the Oklahoma
13 Commission on Children and Youth.

14 C. Each member of the Child Abuse Multidisciplinary Team
15 Council is authorized to have one designee.

16 D. The appointed members shall be persons having expertise in
17 multidisciplinary team joint investigation and the dynamics,
18 identification, and treatment of child abuse and neglect and child
19 sexual abuse.

20 E. The Child Abuse Multidisciplinary Team Council shall:

21 1. Establish objective criteria and guidelines for
22 multidisciplinary investigations and, as appropriate for each
23 discipline, discipline-specific training on child abuse and neglect
24

1 for professionals with responsibilities affecting children, youth,
2 and families;

3 2. Review curricula and make recommendations to state agencies,
4 professional organizations, and associations regarding available
5 curricula and curricula having high standards of professional merit;

6 3. Review curricula regarding child abuse and neglect used in
7 law enforcement officer training by CLEET and make recommendations
8 regarding the curricula to CLEET;

9 4. Cooperate with and assist professional organizations and
10 associations in the development and implementation of ongoing
11 training programs and strategies to encourage professionals to
12 participate in such training programs;

13 5. Make reports and recommendations regarding the continued
14 development and improvement of multidisciplinary team joint
15 investigations to the Oklahoma legislature;

16 6. Prepare and issue a model protocol for multidisciplinary
17 teams regarding the investigation and prosecution of child sexual
18 abuse, child physical abuse, and neglect cases;

19 7. Review and approve protocols prepared by the local
20 multidisciplinary teams;

21 8. Advise multidisciplinary teams on team development;

22 9. Determine data collection protocol and collect data on the
23 operation and cases reviewed by the multidisciplinary teams;

24

1 10. Collect data from the Oklahoma Commission on Children and
2 Youth Child Death Review Board and Post Adjudication Review Board;

3 11. Issue annual reports; and

4 12. Annually approve the list of functioning multidisciplinary
5 teams in the state.

6 SECTION 6. REPEALER 10A O.S. 2021, Sections 1-9-103a and
7 1-9-103b and 63 O.S. 2021, Section 1-227.9, are hereby repealed.

8 SECTION 7. This act shall become effective November 1, 2025.

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